

MUTUAL NON-DISCLOSURE AGREEMENT

This Agreement is governed by the laws of Malaysia

This Mutual Non-Disclosure Agreement (the "**Agreement**") is made on this _____ day of _____ 2026 (the "**Effective Date**")

BETWEEN

PARTY A:

[**SUN SMART SDN BHD** (Company No. _____), a company incorporated in Malaysia and having its registered address at _____]
and / or, in respect of the Snooker Venture, [**Full Name** (NRIC No. _____)] of _____
(the "**First Party**");

AND

PARTY B:

[Complete the applicable box:]

☐ **Individual** — [Full Name] (NRIC / Passport No. _____) of _____; or
☐ **Company** — [Company Name] (Company No. _____), a company incorporated in Malaysia and having its registered address at _____
(the "**Second Party**").

The First Party and the Second Party are hereinafter referred to individually as a "**Party**" and collectively as the "**Parties**".

RECITALS

- (A) The Parties wish to hold discussions and exchange information in connection with (i) the mobile-phone retail business carried on or proposed by the First Party under the "SUN SMART" name (the "**SUN SMART Business**"), and (ii) a proposed new business venture in the snooker / billiards / cue-sports industry contemplated by the First Party (the "**Snooker Venture**").
- (B) The purpose of such discussions is to explore and evaluate a potential engagement of the Second Party to provide software development, programming and related technical services, and a potential business collaboration between the Parties, in relation to the SUN SMART Business and/or the Snooker Venture (the "**Purpose**").
- (C) In the course of the discussions, each Party may disclose to the other certain confidential and proprietary information. The Parties wish to protect such information on the terms set out in this Agreement.

NOW IT IS HEREBY AGREED as follows:

1. DEFINITIONS

- 1.1 **"Confidential Information"** means all information disclosed by or on behalf of one Party (the **"Disclosing Party"**) to the other Party (the **"Receiving Party"**), whether before or after the Effective Date, whether orally, in writing, electronically, visually or in any other form, and whether or not marked as confidential, including without limitation: all information, ideas, concepts, business models, plans, strategies and proposals relating to the SUN SMART Business and the Snooker Venture; trade secrets, know-how and methodologies; products, services, pricing, margins, financial information, budgets and forecasts; customer, supplier and partner information; marketing and expansion plans; software, source code, designs, specifications, databases and technical materials; and any notes, analyses or documents derived from the foregoing.
- 1.2 **"Representatives"** means, in relation to a Party, its directors, officers, employees, professional advisers, contractors and agents who need to know the Confidential Information for the Purpose.
- 1.3 **"Attendee"** means any person who attends any meeting or discussion between the Parties in connection with the Purpose, as listed in Schedule 1.

2. OBLIGATIONS OF CONFIDENTIALITY

- 2.1 The Receiving Party shall keep the Confidential Information strictly confidential and shall not disclose it to any third party without the prior written consent of the Disclosing Party.
- 2.2 The Receiving Party shall use the Confidential Information solely for the Purpose and for no other purpose whatsoever, and in particular shall not use it for its own benefit or the benefit of any third party.
- 2.3 The Receiving Party shall protect the Confidential Information using no less than a reasonable degree of care, and at least the same degree of care it uses to protect its own confidential information of a similar nature.
- 2.4 The Receiving Party may disclose the Confidential Information only to those of its Representatives who need to know it for the Purpose, provided that it first informs them of its confidential nature and ensures they are bound by obligations of confidentiality no less protective than those in this Agreement. The Receiving Party remains liable for any breach by its Representatives.

3. EXCLUSIONS

The obligations in Clause 2 do not apply to information which the Receiving Party can demonstrate by written records: (a) is or becomes publicly available other than through a breach of this Agreement; (b) was lawfully in its possession before disclosure and free of any confidentiality obligation; (c) is lawfully obtained from a third party entitled to disclose it; (d) is independently developed by the Receiving Party without use of or reference to the Confidential Information; or (e) is required to be disclosed by law, regulation or an order of a court or competent authority, provided that the Receiving Party gives, where lawful, prompt written notice to the Disclosing Party and discloses only the minimum required.

4. OWNERSHIP, NO LICENCE AND NON-USE

- 4.1 All Confidential Information, and all intellectual property and rights in the ideas, concepts and business models relating to the SUN SMART Business and the Snooker Venture, remain the sole property of the Disclosing Party. Nothing in this Agreement transfers or grants any right, title, licence or interest in the Confidential Information to the Receiving Party, save the limited right to use it for the Purpose.
- 4.2 The Receiving Party shall not, whether during the discussions or after they end, use any Confidential Information to establish, operate, assist or invest in any business that competes with the SUN SMART Business or the Snooker Venture, nor to circumvent the Disclosing Party in respect of any opportunity, supplier, customer or partner disclosed under this Agreement.
- 4.3 Disclosure of Confidential Information does not oblige either Party to enter into any further agreement or business relationship. Any such engagement shall be the subject of a separate written agreement.

5. RETURN OR DESTRUCTION

Upon the written request of the Disclosing Party, or upon termination of this Agreement, the Receiving Party shall promptly return or, at the Disclosing Party's option, destroy all Confidential Information and all copies in its possession or control, and confirm such destruction in writing, save for one copy that may be retained solely to comply with legal or regulatory obligations, which copy remains subject to this Agreement.

6. TERM AND SURVIVAL

- 6.1 This Agreement takes effect on the Effective Date and continues until terminated by either Party on fourteen (14) days' written notice to the other.
- 6.2 The obligations of confidentiality and non-use in this Agreement survive termination and continue for a period of **three (3) years** from the date of the last disclosure of Confidential Information under this Agreement.

7. ATTENDEES BOUND

Each Party shall ensure that every Attendee who participates in any meeting or discussion in connection with the Purpose is made aware of, and agrees to be personally bound by, the obligations of confidentiality and non-use in this Agreement, by signing the acknowledgement in Schedule 1. Each Party remains responsible for any breach by its Attendees.

8. NO WARRANTY

All Confidential Information is provided "as is". The Disclosing Party makes no representation or warranty as to its accuracy or completeness, and shall have no liability arising from the Receiving Party's use of or reliance on it, save in respect of the confidentiality obligations under this Agreement.

9. REMEDIES

The Parties acknowledge that damages alone may not be an adequate remedy for a breach of this Agreement, and that the Disclosing Party is entitled to seek injunctive relief, specific performance and other equitable remedies, in addition to any other remedy available at law.

10. GENERAL

- 10.1 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions and understandings.
- 10.2 **Variation.** No variation of this Agreement is effective unless made in writing and signed by both Parties.
- 10.3 **Waiver.** No failure or delay in exercising any right operates as a waiver of it.
- 10.4 **Severability.** If any provision is held invalid or unenforceable, the remaining provisions continue in full force, and the invalid provision shall be modified to the minimum extent necessary to make it enforceable.
- 10.5 **Assignment.** Neither Party may assign this Agreement without the prior written consent of the other.
- 10.6 **Notices.** Notices under this Agreement shall be in writing and sent to the address or email of the relevant Party stated in this Agreement or as later notified in writing.
- 10.7 **Counterparts.** This Agreement may be signed in counterparts, each of which is an original and which together constitute one agreement. Signatures exchanged electronically are valid and binding.
- 10.8 **Governing Law and Jurisdiction.** This Agreement is governed by and construed in accordance with the laws of Malaysia, and the Parties submit to the non-exclusive jurisdiction of the courts of Malaysia.

EXECUTION

IN WITNESS WHEREOF the Parties have executed this Agreement on the date first written above.

Signature — for and on behalf of the **First Party**

Name: _____

NRIC / Company No.: _____

Designation (if company): _____

Date: _____

Witness Signature: _____

Witness Name: _____

Signature — for and on behalf of the **Second Party**

Name: _____

NRIC / Company No.: _____

Designation (if company): _____

Date: _____

Witness Signature: _____

Witness Name: _____

SCHEDULE 1 — MEETING ATTENDEES ACKNOWLEDGEMENT

Each person listed below attended a meeting or discussion between the Parties in connection with the Purpose. By signing, each person acknowledges that he/she has read this Agreement and agrees to be **personally bound** by the obligations of confidentiality and non-use set out in it.

NO.	FULL NAME	NRIC / PASSPORT NO.	REPRESENTS (PARTY A / B / COMPANY)	SIGNATURE	DATE
1					
2					
3					
4					
5					
6					

PRACTICAL NOTES BEFORE SIGNING (NOT PART OF THE AGREEMENT)

1. Fill in every blank: the date, both Parties' full legal names, NRIC / company registration numbers and addresses, and tick the correct box for Party B (individual or company).
2. Make sure **every person present** at the meeting signs Schedule 1, so all attendees are personally bound — this is what makes "all counterparties adhere" effective.
3. Have the signed Agreement **stamped at LHDN** (Inland Revenue Board) within 30 days of signing; nominal stamp duty applies to an agreement of this kind.
4. Sign two originals (one for each Party), each initialled on every page.
5. This is a solid working template, but for anything high-value it is worth having a Malaysian-qualified lawyer review it before signing.